

Court No. - 32

Case :- WRIT - C No. - 1356 of 2020

Petitioner :- Shambu Nath Jaiswal

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Vijay Kumar Ojha

Counsel for Respondent :- C.S.C., Mahboob Ahmad

Hon'ble Shashi Kant Gupta,J.

Hon'ble Piyush Agrawal,J.

This writ petition has been filed, inter alia, for the following reliefs:

" (I) Issue a writ, order or direction in the nature of certiorari quashing the recovery proceedings pursuant to the recovery certificate dated 25.10.2019 issued by the respondent no. 2 whereby an amount of Rs.7,14,865/- has been directed to be recovered as Land Revenue against electricity dues.

(II) Issue a writ, order or direction in the nature of mandamus commanding the respondent no. 2 to pass a fresh order after giving opportunity of hearing to the petitioner. "

Heard the learned counsel for the petitioner and Mr. Mahboob Ahamd, learned counsel for the electricity department and perused the record.

Learned counsel for the petitioner has submitted that the respondents are taking coercive action against the petitioner without giving any opportunity of hearing and without following the provisions contained under the U.P. Electricity Supply Code 2005.

Considering the facts and circumstances of the case and taking a lenient view in the matter, we direct the petitioner to appear on 05.02.2020 at

11.00 A.M. before the Respondent No.2, Executive Engineer along with his objection and adduce his evidence, if any, in support of his contention. The Respondent No.2, thereafter, shall pass a final order by a speaking and reasoned order after considering the objections of the petitioner as well as the contention raised by the petitioner within a period of four weeks thereafter.

For a period of eight weeks from today or till the disposal of the representation/objection, whichever is earlier, no coercive action shall be taken against the petitioner. In case of default in filing the objection/representation, as indicated herein above, the present interim order shall stand vacated automatically.

In case the petitioner is aggrieved with the final order, if any, passed against the petitioner, it will be open for the petitioner to file an appeal before the concerned authority under Section 127 of the Electricity Act, 2003 in accordance with law.

It is made clear that in case the petitioner does not appear on the said date fixed, the impugned recovery citation shall stand revived automatically.

With the above observations, the writ petition stands disposed of.

Order Date :- 17.1.2020

Arun